

Harendra Singh v. State of U.P. And 4 Others

Allahabad High Court · Division Bench · 16 May 2022 · Writ - C No. 30385 of 2021 · **Writ petition disposed of; petitioner given liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided within the next four weeks after hearing; no coercive action for eight weeks or until disposal of the objection, whichever is earlier**

HEADNOTE

Where a writ challenges a recovery citation and an order rejecting a representation on a demand for tubewell dues standing in the name of a deceased consumer, and the distribution licensee's counsel states that an objection to the demand will be decided in accordance with law within a time-bound period, the High Court will not decide liability on merits. The petition is disposed of with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the officer concerned within four weeks; if so submitted, it is to be decided after hearing within the next four weeks. Coercive action on the demand is stayed for eight weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Harendra Singh filed Writ-C No. 30385 of 2021 seeking to quash a recovery citation dated 02.07.2020 and an order dated 10.06.2021 of respondent No. 4, which had rejected his representation of 11.02.2021. The demand sought to recover Rs. 4,65,757/- of electricity dues standing against late Sudama, son of late Bahadur, for an agricultural tubewell connection, from the petitioner, on a letter of Sudama's widow stating that Sudama had died about thirty years earlier and that the tubewell was being used by the petitioner, a cousin of the deceased.

Counsel for the Power Distribution Corporation (respondents 4 and 5) admitted the connection was agricultural. On 20.1.2022 the Court recorded that the dues appeared to span several decades, that the petitioner was not the consumer, and that the 10.06.2021 order appeared prima facie arbitrary; time was granted for a short counter-affidavit. On 16.5.2022 the licensee's counsel stated that the petitioner may file an objection to the demand, to be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed recovery of a deceased consumer's tubewell dues — objection under Para 6.5; writ not decided on merits

QUESTION

Where a writ challenges recovery of a deceased agricultural consumer's dues from a person who is not the consumer, will the Court decide liability or relegate the petitioner to Para 6.5?

HOLDING

On the licensee's statement that the petitioner may file an objection against the impugned demand, the Court, without expressing any opinion on merits, disposed of the writ with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent No. 4 within four weeks. If that objection is submitted in time, respondent No. 4 shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. No coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 3-5

QUALIFIER

The Court did not decide whether a cousin of a deceased tubewell consumer can be made liable for decades-old arrears, and the disposal does not rest on the 20.1.2022 observation that the 10.06.2021 order appeared prima facie arbitrary.

FLAG Four-page unnumbered order-sheet. Pass-overs of 30.11.2021 and 23.12.2021. On 20.1.2022 (Kesarwani and Vipin Chandra Dixit, JJ.) the Court recorded the agricultural/tubewell connection in the name of late Sudama, that dues appeared to span decades, and that recovery from the petitioner (cousin, not the consumer) appeared prima facie

arbitrary. Operative disposal is 16.5.2022 (Kesarwani and Jayant Banerji, JJ.). Paras 1–5 are sequential blocks of that order (heard; relief quoted; licensee's statement; Para 6.5 liberty; stay). The Court wrote 'Para 6.5', not a sub-clause.

PRINCIPLE TAGS

clause-6.5-alternate-remedy On the licensee's statement, the writ challenging the recovery citation and the 10.06.2021 rejection of the petitioner's representation was disposed of by relegating him to an objection under Para 6.5, without deciding merits. ¶ 3-4

clause-6.5-statutory-remedy The Court treated Para 6.5 of the U.P. Electricity Supply Code, 2005 as the forum for the objection to the tubewell demand, to be decided by respondent No. 4 after hearing within a further four weeks. ¶ 4

6.5-representation-as-appropriate-remedy Liberty was granted to submit the Para 6.5 objection within four weeks; coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER, A COUSIN AND NOT THE CONSUMER, IS LIABLE FOR LATE SUDAMA'S TUBEWELL DUES OF RS. 4,65,757/-

The final order expressly declined any opinion on merits and left the demand to the Para 6.5 objection. An earlier listing had called the 10.06.2021 order prima facie arbitrary because the petitioner was not the consumer and the dues appeared to span decades. ¶ 4

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 02.07.2020 AND OF THE ORDER DATED 10.06.2021 REJECTING THE REPRESENTATION DATED 11.02.2021

Neither instrument was quashed; both were left to abide the Para 6.5 decision, with a time-bound stay of coercive action. ¶ 2-5